

JORDAN 2017 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The Hashemite Kingdom of Jordan is a constitutional monarchy ruled by King Abdullah II bin Hussein. The constitution concentrates executive and legislative authority in the king. The multiparty parliament consists of the 65-member House of Notables (Majlis al-Ayan) appointed by the king and a 130-member elected lower house, the Chamber of Deputies (Majlis al-Nuwwab). Elections for the Chamber of Deputies took place in September 2016. International observers deemed the elections were organized, inclusive, credible, and technically well run.

Civilian authorities maintained effective control over the security forces.

The most significant human rights issues included allegations of torture by security and government officials; arbitrary arrest and detention, including of activists and journalists; infringements on citizens' privacy rights; restrictions on freedom of expression, including criminalization of libel, slander, and defamation directed at the government or officials, intimidation of journalists, censorship, and blocking of the internet; restrictions on freedom of association and assembly; reports the government deported some Syrian and Palestinian refugees to Syria without adjudication of whether they had a well-founded fear of persecution there; allegations of official corruption, including in the judiciary; and "honor" killings of women, although the government took a number of legislative and practical steps to deter the practice.

Impunity remained widespread, and the government did not take sufficiently strong steps to investigate, prosecute, or punish officials who committed abuses. The government took limited, nontransparent steps against such officials, and information on the outcomes was not publicly available.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were some reports of arbitrary or unlawful deprivation of life. Local media, government authorities, and human rights organizations alleged that at least one individual died in custody from alleged torture by Public Security Directorate (PSD) personnel during the year.

In August the Government Coordinator for Human Rights stated the police court was considering three cases of alleged torture and abuse leading to death by PSD personnel. The courts charged eight officers with torture after the death in May of 18-year-old Raed Amar at Jiza police station south of Amman. Two additional police court cases continued: the trial concerning the 2015 death while in custody of Abdullah al-Zo'ubi (adjourned for court deliberation), and the trial for the 2015 death while in custody of Omar al-Nasir (continuing). Courts returned a not guilty verdict concerning the death while in custody of Sultan al-Khatatbeh in 2013. The verdict was subject to appeal.

b. Disappearance

Human rights lawyers identified one case of alleged disappearance during the year. Authorities maintained that the missing person was not detained by or on behalf of the government.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution bans torture, including psychological harm, by public officials and provides penalties of as long as three years imprisonment for its use, with a penalty of up to 15 years if serious injury occurs. While the law prohibits such practices, international and local nongovernmental organizations (NGOs) continued to report incidents of torture and widespread mistreatment in police and security detention centers. Human rights lawyers found the law ambiguous and supported amendments to define “torture” better and strengthen sentencing guidelines.

The police court case against five police officers charged with the torture of Omar al-Nasir continued. Omar al-Nasir died in custody at the Criminal Investigation Department’s headquarters in Amman in late September 2015.

According to a report by the quasi-governmental National Center for Human Rights (NCHR), the center received 63 complaints of torture and mistreatment in police stations in 2016: three cases had no further action at the complainer’s request; authorities closed 20 cases due to insufficient evidence; 43 complaints remained under investigation, and authorities referred three complaints to the police court. The NCHR received 23 additional complaints of torture and inhuman treatment, but did not report specifics of the allegations. In 2016 the NCHR reported 12 complaints of torture and mistreatment at prisons and rehabilitation

centers, while it observed an increase in complaints of torture and mistreatment against the Antinarcotics Department and the Criminal Investigation Department. Local and international NGOs reported that the Antinarcotics Department and the General Intelligence Directorate (GID) routinely subjected detainees to severe physical abuse.

Through August 30, the PSD Human Rights and Transparency Office received 179 allegations of harm (a lesser charge than torture that does not require a demonstration of intent) against officers. Nine of these cases were referred to the police court; 86 remained pending for further investigation; 26 were referred for administrative decision, and 58 dismissed by the court due to insufficient evidence.

In August parliament increased the mandatory minimum sentence for torture from six months to one year. The maximum punishment remained three years imprisonment with hard labor.

Prison and Detention Center Conditions

Conditions in the country's 16 prisons varied: old facilities were poor, while new prisons met international standards. Authorities held migrants without legal work or residency permits, or charged with other crimes, in the same facilities as citizens. (For information on asylum seekers and refugees, see section 2.d.).

Physical Conditions: The NCHR conducted 60 field visits to detention centers. Significant problems in older prison facilities included inadequate sanitary facilities, poor sanitation and ventilation, extreme temperatures, lack of drinking water, limited access to sunlight, and medical care only in emergencies. In its 2016 report on conditions in detention centers, the NCHR identified problems including overcrowding, limited health care, inadequate legal assistance for inmates, and limited social care for the inmates and their families. Detainees reported abuse and mistreatment by guards.

According to the PSD's Human Rights and Transparency Office, the PSD received 10 cases of allegations of torture and mistreatment in prisons and rehabilitation centers; authorities convicted seven officers.

Officials and the NCHR reported overcrowding at most prisons, especially the prisons in and around Amman.

International and domestic NGOs reported that Islamist prisoners faced harsher prison conditions than other inmates.

According to the PSD, authorities identified some facilities to hold only pretrial detainees. The GID held some persons detained on national security charges in a separate detention facility. During the year the NCHR made an unspecified number of announced visits to the GID prison. Detainees complained of prolonged pretrial detention, solitary confinement, isolation, and prolonged detentions of up to six months. According to human rights activists, the GID held detainees in solitary confinement and did not allow unsupervised meetings with visitors, including their lawyers. Local and international NGOs received reports of mistreatment, abuse, and torture in GID detention facilities.

Although basic care was available in all correctional facilities, medical staff complained that correction facilities throughout the country lacked adequate facilities, supplies, and staff. The staff was unable to address deficiencies in care available to inmates. Most facilities were unable to conduct blood tests and had limited X-ray capabilities, forcing doctors to rely largely on self-reporting by patients for certain conditions. If an inmate's condition was too severe for treatment at the clinic, doctors recommended transfer to a local hospital.

Conditions in the women's prisons were generally better than conditions in most of the men's prisons, but overcrowding at Jweideh was a problem.

Police stations have no designated holding areas for juveniles.

Administration: Authorities took no steps systematically to use alternatives to prison sentences for nonviolent offenders. In some cases authorities severely restricted the access of prisoners and detainees to visitors. Authorities sometimes did not inform the families regarding the whereabouts of detainees and banned family visits. Karamah, a team of government officials and NGOs, and the NCHR monitored prison conditions.

Independent Monitoring: The government permitted some local and international human rights observers and lawyers to visit prisons and conduct private interviews. The International Committee of the Red Cross (ICRC) had wide access to visit prisoners and detainees in all prisons, including facilities controlled by the GID, according to standard ICRC modalities. Authorities denied requests by local human rights observers to conduct monitoring visits independently of Karamah and the NCHR. Local NGOs reported that access depended on relationships with

detention center authorities and whether requests came through the Government Coordinator for Human Rights or the NCHR. The prime minister-appointed government coordinator for human rights organized monitoring visits for several local and international NGO representatives to the Jweideh Prison before and after its renovation in 2016. The coordinator organized a visit to Swaqah Prison in October.

Improvements: The government conducted significant renovations on the Jweideh Prison based on repeated calls for its closure from the NCHR, which cited deteriorating infrastructure and inmates' complaints of poor social and medical care. Eight temporary detention centers remained closed for failing to meet acceptable standards, and the PSD continued renovations at those facilities to meet national and international standards. PSD also renovated 17 temporary detention centers at police stations.

The PSD continued renovations to ease overcrowding. It was expanding Qafqafa Prison in Jerash to double its capacity from 400 to 800 inmates. The PSD reopened Perrin Prison for rehabilitation of first-time drug users in Zarqa after a six-year closure.

d. Arbitrary Arrest or Detention

The law prohibits arbitrary arrest and detention and provides for the right of any person to challenge the lawfulness of his/her arrest or detention in court; however, the government did not always observe these prohibitions.

Role of the Police and Security Apparatus

Civilian authorities maintained control over security forces. The PSD controls general police functions. The PSD, the GID, the gendarmerie, the Civil Defense Directorate, and the military share responsibility for maintaining internal security. The PSD, the Civil Defense Directorate, and the gendarmerie report to the minister of interior with direct access to the king when necessary, and the GID reports directly to the king.

According to local and international NGOs, the government rarely investigated allegations of abuse or corruption, and, when authorities investigated such allegations, there were few convictions and little to no public information or transparency about the investigation and sentencing. Local and international NGOs and activists alleged widespread impunity. Citizens may file complaints of

police abuse or corruption with the PSD's Human Rights and Transparency Office or with a police prosecutor stationed with each unit and at each prison. Citizens may file complaints of abuse and corruption by the gendarmerie directly with the PSD's Human Rights and Transparency Office. A GID liaison officer receives complaints against the directorate and refers them to GID personnel for investigation. Citizens may also file complaints against the PSD, gendarmerie, and the GID with the NCHR, several human rights NGOs, or the civilian prosecutor general.

The PSD's Special Branch Unit is tasked with investigating allegations of police corruption. The PSD and the GID try their personnel internally with their own courts, judges, and prosecutors; authorities rarely published reports about the proceedings. The government seconded civilian prosecutors to these courts in response to human rights recommendations. Trials proceeded slowly and rarely yielded substantive punishments for human rights violations; authorities did not make such punishments public. Human rights activists cited fear of official retribution as a reason for the overall lack of official complaints of human rights violations.

The PSD includes a mandatory module on human rights in required annual training for all personnel including cadets. There is also a mandatory module on human rights in the required training for all new officers in each unit.

During the year there were few reported instances of security forces using excessive force with impunity and failing to protect demonstrators from violence. On May 2, an 18-year-old man died in Jiza police station, south of Amman, after being detained for six days. Authorities detained and charged eight police officers with torture and mistreatment leading to death. As of August police officers were free on bail, and the trial continued.

In June 2016 a 14-year-old boy died in Balqa Governorate during a police raid against suspected drug dealers. According to the PSD investigation, the youth was pushed by the crowd and fell to his death while fleeing security forces. The case was closed.

Arrest Procedures and Treatment of Detainees

The law allows authorities to detain suspects for up to 24 hours without a warrant in all cases. It requires that police notify authorities within 24 hours of an arrest and that authorities file formal charges within 15 days of an arrest. Authorities can

extend the period to file formal charges to as long as six months for a felony and two months for a misdemeanor. According to local NGOs, prosecutors routinely requested extensions, which judges granted. The State Security Court authorizes judicial police to arrest and keep persons in custody for seven days prior to notification while conducting criminal investigations. This authority includes arrests for alleged misdemeanors. NGOs alleged that authorities transferred suspects to the State Security Court to extend the legal time from 24 hours to seven days for investigation prior to notification or transferred suspects from police station to police station to extend the period for investigation. The NCHR criticized the lack of record keeping at police detention facilities, noting that records failed to note the exact time of arrest and the arresting employee.

The penal code allows bail, and authorities used it in some cases. In many cases the accused remained in detention without bail during the proceedings. Most detainees reported not having timely access to a lawyer or the ability to contact their relatives at the time of arrest, but authorities generally permitted family member visits, albeit sometimes up to a week after the arrest. Courts appointed lawyers to represent indigent defendants charged with felonies carrying possible life (often interpreted by the judiciary as 20 years) sentences or the death penalty, although legal aid services remained minimal. The law provides the right to appear promptly before a judge or other judicial officer for a judicial determination of the legality of the detention. At times authorities held suspects incommunicado for up to one week or placed them under house arrest. A number of human rights activists alleged that authorities held arrestees incommunicado to hide evidence of physical abuse by security forces. Courts did not offer adequate translation services for defendants who could not speak Arabic.

In February the Royal Committee for Developing the Judiciary and Enhancing the Rule of Law issued a report recommending limiting detention to “exceptional” cases and using bail and other alternative control measures. The report stated detainees have the right to counsel at the time of their arrest, to representation during trials for serious crimes that carry penalties of 10 years or more in prison, and suggested the establishment of a fund for legal aid. The king endorsed these recommendations in March, and parliament amended the code of criminal procedure in July.

Arbitrary Arrest: In cases purportedly involving state security, security forces at times arrested and detained individuals in administrative detention without warrants or judicial review, held them in pretrial detention without informing them of the charges against them, and either did not allow defendants to meet with their

lawyers or did not permit meetings until shortly before trial. Activists also reported during the year that officials detained migrant laborers in arbitrary arrests; those whose employers did not administratively secure their release were held for working without authorization, being absent from their authorized workplace, or lacking proper residency permits. Local NGOs reported employers physically abused or mistreated some of these detainees. In August, PSD's Human Rights and Transparency Office reported authorities held 1,218 persons since January in administrative detention for varying amounts of time.

The law allows the 12 provincial governors to detain administratively individuals as they deemed necessary for investigation purposes or for the protection of that individual. Authorities held some individuals in prison or house arrest without due process and often despite a finding of not guilty in legal proceedings. The governors may prolong detentions; authorities administratively detained some migrants for several months without charges. Governors used this provision widely, including to place women in "protective detention" when family members threatened to kill them to protect family honor. Although incarcerated indefinitely, these women faced no legal charges and posed no threat to public safety. Human rights advocates estimated authorities held 40 to 50 women under protective detention throughout the year.

Several international and national NGOs alleged governors routinely abused the law, imprisoning individuals when there was not enough evidence to convict them and prolonging the detention of prisoners whose sentences had expired.

Pretrial Detention: The common practice of judges granting extensions to prosecutors prior to filing formal charges unnecessarily lengthened pretrial detention. Lengthy legal procedures, a large number of detainees, judicial inefficiency, and judicial backlog added to the problem of pretrial detention. Automation of several legal procedures in recent years reduced the average period of pretrial detention, according to local legal aid organizations. As of May, 37 percent of all detainees were pretrial detainees, according to an EU-commissioned study. Of this 37 percent, 44 percent had cases before the State Security Court. According to the NCHR, pretrial detention length varied from three days to six months, but in some cases it reached two years. In 2016, according to PSD statistics, 36,197 persons spent time in pretrial detention based on the order of a prosecutor, and 30,138 persons were subjected to administrative detention under the governor's authority under the crime prevention law.

The law criminalizes detaining any person without a prosecutor's order for more than 24 hours. Rights activists said authorities routinely ignored this limit, and according to human rights organizations, impunity was very common for violations.

Detainee's Ability to Challenge Lawfulness of Detention before a Court: The law does not have an explicit provision that entitles victims of arbitrary or unlawful detention to restitution. The Criminal Procedures Law does not provide for routine judicial review of administrative detentions ordered by the 12 governors. Detainees can bring civil lawsuits for restitution for arbitrary or unlawful detention or bring criminal lawsuits for illegal incarceration, but this option rarely occurred. Detainees must hire a lawyer with at least five years' experience, must pay their own fees, and must present a copy of the order of detention. There were no cases of restitution during the year.

e. Denial of Fair Public Trial

The law provides for an independent judiciary, but legal experts and human rights lawyers' allegations of nepotism and the influence of security services and special interests raised concerns about the judiciary's independence. Additionally, judicial inefficiency and a large case backlog delayed the provision of justice. In early August parliament passed a bill that provided further provisions for an independent judiciary and better qualitative performance of courts.

Trial Procedures

The law presumes that defendants are innocent. The law provides for the right to a fair and public trial, and an independent judiciary generally enforced this right. Officials, however, sometimes did not respect the right of defendants to be informed promptly and in detail of the charges against them or to a fair and public trial without undue delay. According to the law, all civilian court trials and State Security Court trials are open to the public unless the court determines that the trial should be closed to protect the public interest. Authorities occasionally tried defendants in their absence. Defendants are entitled to legal counsel, provided at public expense for the indigent in cases involving the death penalty or life imprisonment, but only at the trial stage. Most criminal defendants lacked legal representation prior to and at trial. Defendants before the State Security Court frequently met with their attorneys only one or two days before their trial began. Authorities did not accord defendants adequate time and facilities to prepare their

defense. Authorities did not uniformly provide foreign residents, especially foreign workers who often did not speak Arabic, with free translations and defense.

Defendants may present witnesses and evidence and may cross-examine witnesses presented against them. Defendants do not have the right to refuse to testify. Although the constitution prohibits the use of confessions extracted by torture, human rights activists noted that courts routinely accepted confessions allegedly extracted under torture or mistreatment. Defendants can appeal verdicts; appeals are automatic for cases involving the death penalty or a sentence of more than 10 years' imprisonment.

In the State Security Court, defendants have the right to appeal their sentences to the Court of Cassation, which has the authority to review issues of both fact and law.

The government allowed international observers to visit the State Security Court and the Military and Police Courts to observe court proceedings in June and September. International observers watched Military Tribunal proceedings in June and July for the trial of Maarek Abu Tayeh, who shot three foreign armed forces members at Prince Faisal Air Base in November 2016.

Civil, criminal, and commercial courts accord equal weight to the testimony of men and women. In sharia courts, which have jurisdiction over Muslim marriage, divorce, and inheritance cases, the testimony of one man equals that of two women.

Political Prisoners and Detainees

During the year the government detained and imprisoned activists for political reasons including criticizing the government, criticizing the government's foreign policy, the publication of criticism of government officials and official bodies, criticizing foreign countries, and chanting slogans against the king. Citizens and NGOs alleged the government continued to detain other individuals for political reasons and that governors continued to use administrative detention for what appeared to be political reasons.

On February 17, authorities detained activist Rani al-Zawahreh, linked to the Hirak opposition movement since 2010. Security agencies arrested him under provisions of the terrorism law. Law enforcement authorities previously targeted Zawahreh in connection with his opposition activities and charged him with "defamation and

incitement.” As a result of those charges, he served a six-month jail sentence and abandoned the opposition movement. Authorities released Zawahreh after a 15-day hunger strike and sit-in by members of his tribe.

Civil Judicial Procedures and Remedies

Individuals may bring civil lawsuits related to human rights violations through domestic courts.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, but the government did not respect this prohibition. Individuals widely believed that security officers monitored telephone conversations and internet communication, read private correspondence, and engaged in surveillance without court orders. They widely believed the government employed an informer system within political movements and human rights organizations.

Activists reported that GID officials withheld documents and threatened to bar children of activists from entering or graduating from university.

Former prisoners alleged authorities banned them from obtaining security clearances needed for employment.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Expression, Including for the Press

The constitution provides that “The State shall guarantee freedom of opinion; and every Jordanian shall freely express his opinion by speech, writing, photography, and the other means of expression, provided that he does not go beyond the limits of the law.” Authorities applied regulations to limit freedom of speech and press in practice. Authorities applied articles of the Counterterrorism Law, the Cybercrimes Law, the Press and Publications Law, and the penal code to arrest local journalists.

Freedom of Expression: The law permits punishment of up to three years’ imprisonment for insulting the king, slandering the government or foreign leaders, offending religious beliefs, or stirring sectarian strife and sedition. During the year

the government restricted the ability of individuals to criticize the government by arresting a number of activists for political expression and for criticizing foreign governments. Authorities used laws against slander of public officials, blackmail, and libel to restrict public discussion, as well as employing official gag orders issued by the public prosecutor and circulated by the Media Commission.

In January the Court of Cassation ratified the State Security Court's December 2016 decision to convict Nahed Hattar's killer of "committing terrorist acts that led to the death of a human being" and to sentence him to capital punishment. Authorities arrested Hattar in August 2016 for posting an editorial cartoon on Facebook that included a personification of God, and a lone gunman killed him a month later for his Facebook post insulting religion. On March 4, authorities executed the convicted murderer.

On January 12, authorities arrested retired Major General Mohammed Otoum and seven other activists protesting against expected price increases and alleged government corruption on social media. The State Security Court prosecutor charged them with undermining the regime and engaging in acts to incite public opinion in breach of the law. A number of members of parliament (MPs) addressed the king in a letter highlighting the incident. Authorities released the detainees on bail four weeks later. The case against Otoum and the other activists remained pending.

In early August the local press reported that the Court of First Instance's prosecutor filed charges including slander, incitement, and defamation against local journalist Mohammad Qaddah, who reportedly posted a video on Facebook, which authorities described as "insulting" and "derogatory" to women in the country. Sixteen individuals joined the prosecution against Qaddah as victims. The case continued.

The Media Commission licenses all public-opinion polls and survey research centers in accordance with the Press and Publication law.

Press and Media Freedom: All publications must obtain licenses from the government to operate. Multiple daily newspapers operated; observers considered several as independent of the government, including one regarded as close to the Islamic Action Front (Muslim Brotherhood) political party. Observers also judged several dailies to be close to the government. The independent print and broadcast media largely operated with limited restriction, and media observers reported government pressure, including the threat of large fines and prison sentences, to

refrain from criticizing the royal family, discussing the GID, covering on-going security operations, using language deemed offensive to religion, or slandering government officials. The government influenced news reporting and commentary through political pressure on editors and control over important editorial positions in government-affiliated media. For example, journalists of government-affiliated and independent media reported that security officials used bribes, threats, and political pressure to force editors to place articles favorable to the government in online and print newspapers.

The law grants the head of the Media Commission authority to close any unlicensed theater, satellite channel, or radio channel. During the year the Media Commission granted broadcasting licenses to companies owned by citizens and foreigners. Those with licenses may not legally broadcast anything that would harm public order, social security, national security, or the country's relations with a foreign country; incite hatred, terrorism, or violent sedition; or mislead or deceive the public. There is a fine for broadcasting without a license. The cabinet, however, must justify the reasons for rejecting a license and allow the applicant to appeal the decision to the judiciary.

Authorities arrested or temporarily detained some journalists, and government officials or private individuals threatened some journalists. On October 25, authorities arrested seven journalists and social media users under the cybercrimes law and the press and publications law after the Secretary-General of the Royal Court, Youssef al-Issawi, filed a complaint against them for publishing accusations against him on social media. The journalists allegedly accused Issawi of corruption. Authorities detained two of the seven but released the others. The investigation for all seven of journalists continued at year's end.

On June 6, the government closed the *al-Jazeera Jordan*'s office and withdrew its license in connection with the Qatar/Gulf dispute.

In February 2016 authorities arrested *al-Ra'i* journalist Zaid Murafai for publishing an article on a protest by judges and court employees regarding losses in their pension fund. The court charged Murafai with slander and defamation under the Cybercrimes Law, as well as reporting on a pending case. Authorities released Murafai on bail four days later; charges remained pending at year's end.

The government has a majority of seats on the board for the leading semiofficial daily newspaper, *al-Rai*, and a share of board seats for *ad-Dustour* daily

newspaper. According to press freedom advocates, the GID's Media Department must approve editors in chief of progovernment newspapers.

Media observers noted that, when covering controversial subjects, the government-owned Jordan Television, Jordan News Agency, and Radio Jordan reported only the government's position.

By law any book can be published and distributed freely. If, however, the Press and Publications Directorate deems that passages violate public norms and values, are religiously offensive, or are "insulting" to the king, it can request a court order to prohibit the distribution of the book. The Media Commission banned distribution of 36 books from January through October for insulting religion or promoting terrorism, compared to more than 150,000 books approved for import.

Violence and Harassment: The government subjected journalists to harassment and intimidation.

In its semiannual report *The Status of Media Freedoms in Jordan between January and July 2017*, the Center for Defending the Freedom of Journalists (CDFJ) documented 98 violations of freedoms against 46 journalists and three media organizations, five cases of physical assault, two cases of humiliating treatment, and numerous assaults on equipment and deletion of content from cameras.

The center documented 34 violations against journalists covering the August 15 municipal and governorate elections. Violations included 16 cases of poll workers obstructing journalists' work, 11 cases of withholding information, unspecified harassment, threats of abuse, and damaging equipment.

In February the CDFJ documented 33 violations against 26 journalists covering the release of soldier Ahmad al-Daqamsah, who had served 20 years in prison for killing seven Israeli schoolchildren. Authorities banned coverage in 26 cases, and four reported attacks on their equipment.

Censorship or Content Restrictions: The government directly and indirectly censored the media. Journalists claimed that the government used informants in newsrooms and exercised influence over reporting and that GID officials censored reporting. Editors reportedly received telephone calls from security officials instructing them how to cover events or to refrain from covering certain topics or events, especially criticism of political reform. Bribery of journalists took place and undermined independent reporting. Occasionally, government officials

provided texts for journalists to publish under their bylines. An opinion poll conducted among 266 media figures found 93.6 percent of journalists self-censored. Journalists cited the threat of detention and imprisonment for defamation for a variety of offenses and court-ordered compensation of as much as 150,000 Jordanian dinars (JD) (\$210,000). At times editors in chief censored articles to prevent lawsuits. The government's use of "soft containment" of journalists, including withholding financial support, scholarships for relatives, and special invitations, led to significant control of media content.

During the year the Media Commission did not circulate any official gag orders restricting discussion in all forms of media, including social media. For grand felony cases or cases of domestic violence, the public prosecutor may issue a gag order to protect the victims or witnesses involved. For example, the Media Commission enforced a publication ban concerning the case of an alleged robber, whom a homeowner shot and killed in west Amman.

The government continued to enforce bans on the distribution of selected books for religious, moral, and political reasons.

Libel/Slander Laws: Government prosecutors relied on privately initiated libel, slander, and defamation lawsuits to suppress criticism of public figures and policies. Dozens of journalists, as well as MPs, faced libel and slander accusations filed by private citizens.

In May authorities arrested an anticorruption activist for defamation after accusing a former minister and current minister of abusing public office for personal gain. Charges remained pending at year's end.

National Security: The government used laws protecting national security to restrict criticism of government policies and officials. The government also issued gag orders restricting discussion on all forms of media concerning the December 2016 terrorist attacks in the southern city of Karak.

Internet Freedom

The government restricted or disrupted access to the internet and censored online content; there were credible reports that the government monitored private online communications without appropriate legal authority. The law requires the licensing and registration of online news websites, holds editors responsible for readers' comments on their websites, requires that website owners provide the

government with the personal data of its users, and mandates that editors in chief be members of the Jordan Press Association. The law gives authorities explicit power to block and censor websites. On July 15, authorities blocked a public petition website for five days, because it was perceived to be an unlicensed news website, before restoring its permissions. The website is dedicated to democracy, rights, and equality petitions.

Authorities continued to block the website of an online lifestyle magazine that covered topics including LGBTI problems, claiming that it was an unlicensed publication.

According to the Media Commission, there is no registration fee for a website. News websites must employ editors in chief with at least four-years' membership in the Jordan Press Association. The owner and editor in chief can be fined between 3,000 JD (\$4,200) and 5,000 JD (\$7,000), in addition to criminal penalties, for website content that "includes humiliation, defamation, or disparagement of individuals in a manner that violates their personal freedoms or spreads false rumors about them."

According to journalists, security forces reportedly demanded websites remove some posted articles. The government threatened websites and journalists that criticized the government, while it actively supported those that reported favorably on the government. The government monitored electronic correspondence and internet chat sites. Individuals believed they were unable to express their views fully or freely via the internet, including by personal email.

According to the World Bank, internet penetration was 75 percent during the year, up from 38 percent in 2010.

Academic Freedom and Cultural Events

The government placed some limits on academic freedom. Some members of the academic community claimed there was a continuing intelligence presence in academic institutions, including monitoring academic conferences and lectures. The government monitored political meetings, speech on university campuses, and sermons in mosques and churches. Academics reported the GID must clear all university professors before their appointment. Academics also reported university administration must approve all research papers, forums, reading materials, movies, or seminars, and administrators clear potentially controversial material

through the GID. Authorities edited commercial foreign films for objectionable content before screening in commercial theaters.

In June the government withdrew authorization for a planned concert by Mashrou' Leila, a Lebanese alternative rock band linked to the LGBTI movement. Authorities also banned the group in 2016. The Ministry of Tourism initially sponsored the show, but the government ultimately reversed course after encountering vocal opposition from MPs, religious leaders, and media commentators, who claimed the group (headed by a gay-identified singer) and its music (touching on themes including sex and alcohol) clashed with Jordanian values.

b. Freedoms of Peaceful Assembly and Association

The government limited freedoms of peaceful assembly and association.

Freedom of Peaceful Assembly

The constitution provides for freedom of assembly, but the government limited this right. Security forces generally permitted demonstrations and provided security at announced demonstrations.

Protestors demonstrated, burning tires and blocking roads in southern Jordan on July 17 through 19, following the July 17 military tribunal conviction of soldier Maarek Abu Tayeh, who killed three foreign armed forces members in November 2016. Members of the Abu Tayeh family and Huweitat tribe staged a series of tribal conferences following the verdict. They also organized a caravan from al-Jafr to Amman, where police met and searched them. Approximately 60 vehicles continued to Amman and peacefully protested in several locations. Security officials dispersed the protesters without casualties.

In June 2016 authorities forcefully dispersed a weeks-long protest in the central town of Dhiban. The government detained three individuals for attempted murder, resisting arrest, firing live ammunition in the air, and insulting the king. Charges remained pending.

The law requires a 48-hour notification to the governor for any meeting or event hosted by any local or international group. Several local and international NGOs reported that hotels required them to present letters of approval from the governor prior to holding training, private meetings, or public conferences. The government

denied authorization for several events. Without letters of approval from the government and security services, hotels cancelled the events and trainings. In some cases NGOs relocated the events and training to private offices. Authorities denied permission to the Jordanian Muslim Brotherhood (which is not legally registered as an association or NGO by the government) and the Islamic Action Front (a legally registered political party) to hold meetings and events on several occasions throughout the country.

Freedom of Association

The constitution provides for the right of association, but the government limited this freedom. The law authorizes the Ministry of Social Development to reject applications to register an organization or to permit any organization to receive foreign funding for any reason. It prohibits the use of associations for the benefit of any political organization. The law also gives the ministry significant control over the internal management of associations, including the ability to dissolve associations, approve boards of directors, send government representatives to any board meeting, prevent associations from merging their operations, and appoint an auditor to examine an association's finances for any reason. The law requires associations to inform the ministry of board meetings, submit all board decisions for approval, disclose members' names, and obtain security clearances for board members from the interior ministry. The law includes penalties, including fines up to 10,000 JD (\$14,000), for violations of the regulations. During 2015 the Ministry of Social Development introduced an application form for the approval process for associations that receive foreign funding. Associations criticized the procedure, which incorporated additional ministries into the decision process and removed the deadline for review of funding requests. NGOs stated the registration process and foreign funding procedures were neither clear, transparent, nor consistently applied. Groups attempting to register experienced months of delays, and those who authorities denied their applications complained that they received inadequate explanations.

During the year NGOs reported that the government sometimes rejected NGO authorization requests to receive foreign funding. As of August 30, the ministry received 8,280 applications for foreign funding. The government approved 124 applications. NGO contacts reported that unexplained, months-long delays in the decision process continued.

The law authorizes the Ministry of Social Development to intervene in NGO activities. As of August 30, the ministry issued warnings to 37 NGOs. Warned NGOs are given a two-month probationary period to address violations.

The Ministry of Industry, Trade, and Supply alleged that the CDFJ violated foreign funding restrictions and ordered the CDFJ to halt receipt of any foreign funding. After conducting an audit, the ministry concluded the CDFJ should have been registered as a nonprofit, rather than a civil company, and subject to foreign funding limits and additional controls. In October the general prosecutor charged the chief executive officer of the CDFJ with violation of two articles of the Companies Law. The CDFJ denied any wrongdoing, noting it operated as a civil company since 1998 and cooperated with government institutions on numerous projects.

Citizens widely suspected that the government infiltrated civil society organizations, political parties, and human rights organizations and their internal meetings.

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, although there were some restrictions.

The UN reported that the government generally cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to internally displaced persons, refugees, returning refugees, asylum seekers, stateless persons, and other persons of concern.

In-country Movement: The government placed some restrictions on the free internal movement of registered Syrian refugees and asylum seekers. The country's land border with Syria has been closed to new refugee arrivals since June 2016. From March to June 2016, the government admitted 21,300 Syrian asylum seekers from the northeastern border where tens of thousands of Syrians had begun to gather. The government accommodated the admitted asylum seekers in a

fenced-off section of Azraq camp pending additional security screening, since it believed many fled from areas controlled by the Islamic State of Iraq and Syria (ISIS). From March to June 2016, after a suicide attack at the border crossing killed seven members of the Jordanian border guard force, authorities cleared approximately 5,000 persons and transferred them from the fenced-off section. From July 2016 to July 31, authorities transferred an additional 6,000 persons from the secured section of the camp. Approximately 1,000 Syrian refugees remained in detention-like conditions pending security checks.

In October 2016 the government closed Cyber City, a refugee camp in a restricted government facility in Ramtha, and moved the camp population, including Palestinian refugees from Syria (PRS), to King Abdullah Park refugee camp, where PRS accounted for 316 of the 526 Syrian refugees. Authorities required Palestinian residents of King Abdullah Park to obtain a leave permit, which was not regularly granted, to visit their relatives in Jordan. Authorities made some exceptions for the sick and elderly to allow twice-monthly visits. Unlike Syrian refugees at Cyber City and King Abdullah Park, PRS were not entitled to the bailout system of a Jordanian guarantor. Authorities did not officially inform PRS of the reasons for their restricted movement.

Foreign Travel: Activists alleged authorities imposed travel bans against citizens.

Protection of Refugees

Refoulement: The government forcibly returned Syrian refugees and PRS, including women, children, war-injured persons, and persons with disabilities, to Syria. International organizations reported that the government forcibly returned to Syria some refugees residing in the country's host communities and camps for alleged security concerns.

Syrian refugees faced an increasing risk of deportation since the start of the year. The main reasons reported were allegations of communicating with and sending money to relatives who are in ISIS-controlled territories in Syria, although some incidents of refoulement were not related to security concerns. Authorities most often sent those subjected to refoulement to Dara'a Province, where many had no support network or way to return across battle lines to their homes, which were often within areas controlled by the regime or ISIS.

Through August the UN Relief Works Agency (UNRWA) was aware of six cases of refoulement of 30 PRS. The vulnerability of PRS to deportation increased their

risk of other abuses. For those who entered the country irregularly (without required documentation, or using Syrian identity documents), refoulement was a constant risk, and access to basic civil services--including renewal of identity documents, the registration of marriages, deaths, and births--was highly complex. UNRWA reported that such activities could result in forced return to Syria, as well as detention and denaturalization.

Access to Asylum: The country's laws do not provide for the granting of asylum or refugee status, and the government lacked a formal system of protecting refugees. A 1998 memorandum of understanding between the government and UNHCR, renewed in 2014, contains the definition of a refugee, confirms adherence to the principle of nonrefoulement, and allows recognized refugees a maximum stay of one year, during which period UNHCR must find a durable solution. The time limit is renewable, and the government generally did not force refugees to return to their country of origin. As of 2014 authorities required all Syrians in the country to register with the Ministry of Interior and obtain a ministry identification card.

The government declared it would not accept additional Syrian refugees after the June 2016 suicide attack, declaring the surrounding area a "closed military zone." The government restricted humanitarian access to the area. International organizations reported that between 45,000 and 50,000 Syrians settled at the northeast desert Jordan-Syria border throughout the year. Other refugees faced questioning at formal entry points, and authorities refused entry to many of them. The government's 2013 announcement that it would not allow entry of PRS remained in effect throughout the year.

Employment: In February 2016 the government announced it would allow Syrian refugees access to the formal labor market and committed to providing 50,000 opportunities for Syrians during the year. To date the Ministry of Labor issued nearly 60,000 work permits to Syrians, although many of the permits were renewals so substantially fewer than 60,000 Syrian refugees had work permits during the year. The government took several steps to expand and facilitate the issuance of work permits, including waiving fees and offering extended amnesties for those working illegally to regularize status. The government also revised work permit practices to allow Syrian workers in the agricultural and construction sectors to switch employers under the supervision of agricultural cooperatives and a trade union, rather than requiring new work permits for each job transfer.

There continued to be delays in implementing procedures at Ministry of Labor offices in governorates outside Amman. There was uncertainty among the refugee population regarding how to apply for the work permits, or whether they would lose eligibility for UNHCR assistance if they entered the legal workplace. Tens of thousands of Syrian refugees continued to work in the informal economy. A government-commissioned study on migrant workers, published in July 2016, estimated that 26 percent of Syrian refugees were economically active in the Jordanian labor market. Very few non-Syrian refugees had access to the formal labor market, and, due to the difficulties and expenses involved in seeking work authorization, many worked in the unofficial labor market.

The UN reported that Syrian refugees working informally were no longer deported or sent to the refugee camps when caught working without authorization. During the year the Ministries of Interior and Labor in coordination with the UN permitted refugees living in the camps to apply for work permits. The agreement allows camp-based refugees to use their work permits as a 30-day leave pass to work outside the camp. Camp-based refugees receiving work permits must report to the camp one day per month. As of August 28, the government issued slightly more than 1,000 work permits to Syrians in Za'atri camp.

Longstanding Palestinian refugees with Jordanian identity documents were well integrated into the Jordanian workforce. This was not the case, however, for the 154,881 Palestinian refugees originally from Gaza, who were not eligible for Jordanian citizenship and unable to work legally or access public services. Additionally, according to UNRWA, authorities deprived PRS, the majority of whom were without Jordanian documents, of the opportunity to work.

Access to Basic Services: The government allowed Syrian and other UNHCR-registered refugees to access public health and education facilities. Since 2014 authorities have charged Syrian refugees for health care at the same rates as uninsured Jordanians, who pay a nominal fee for most basic health services. Iraqi and other refugees must pay the foreigner's rate for health care. The government continued to provide free primary and secondary education to Syrian refugee children, and in 2016 the minister of education announced that all school-age Syrian refugees should have access to education by the end of the year. As of August this objective was not accomplished. Non-Syrian refugees must pay to attend government schools. Public schools, particularly in the north of the country, were overcrowded and operated on a double-shift schedule to accommodate the high number of students. The government doubled the number of double-shift schools to allow an additional 50,000 Syrian refugee students access to formal

education on top of the 126,000 enrolled in 2016. For those not eligible to access formal education, because they have been out of school for three years or more, the Ministry of Education developed a catch-up program to reach another 25,000 students between the ages of nine and 12. As of July 12, 6,127 Syrian refugee children (51 percent girls) had access to the formal school system in both camp and host community settings. In host communities authorities registered 91,031 Syrian refugee children in school, including at the 198 double-shifted schools. In the camps 35,096 children attended 46 schools in 17 school complexes. In July the Ministry of Education opened 49 schools and provided summer classes for 3,593 Syrian children who had not registered on time to attend the first semester of the 2016-17 academic year.

Children over the age of 12, who are not eligible to enroll in formal education, could participate in a Ministry of Education-run informal education dropout program. These three initiatives extended educational opportunities to nearly all school-age Syrian refugees. Some Syrian children continued to face barriers to attending public schools, including no transportation, long distances to schools, bullying by fellow students and/or teachers, or child labor. Refugees had equal access to justice regardless of their legal status, but did not always exercise this right.

The government excluded Palestinian refugees from Gaza who entered the country following the 1967 war from services otherwise available to Palestinian refugees, such as access to public assistance or public medical services. They were eligible to receive UNRWA services.

Temporary Protection: The government also provided temporary protection to individuals who may not qualify as refugees. The government tolerated the prolonged stay of many Iraqis and other refugees beyond the expiration of the visit permits under which they had entered the country.

Stateless Persons

Only the father can transmit citizenship. Women do not have the legal right to transmit citizenship to their children. Children of female citizens married to noncitizen husbands receive the nationality of the father and lose the right to attend public school or seek other government services if they do not hold legal residency, for which they must apply every year, and authorities do not assure continued residency. In guidelines announced by the government in 2014, if children of Jordanian mothers and noncitizen fathers apply and meet certain

criteria, they may gain access to certain services enjoyed by citizens, including access to free primary and secondary education and subsidized health care; the ability to own property, invest, and obtain a Jordanian driver's license; and have employment priority over other foreigners. The minister of interior stated that this ruling affected tens of thousands of families, including hundreds of thousands of children, in which the father lacked Jordanian citizenship. An estimated 55,000 of these fathers were Palestinians. To access these services, children must obtain a special identification card through the Civil Status Bureau. To qualify, applicants must prove the maternal relationship, that the Jordanian mother has been resident in the country for five years, and that the children currently reside in the country. In April 2016 the Civil Status Bureau began issuing identification cards to replace the initial certificates. By law the cabinet may approve citizenship for children of Jordanian mothers and foreign fathers under certain conditions, but this mechanism was not widely known, and approval rarely occurred.

Women may not petition for citizenship for noncitizen husbands, who may apply for citizenship only after fulfilling a requirement that they maintain continuous Jordanian residency for 15 years. Once a husband has obtained citizenship, he may apply to transmit citizenship to his children. Such an application could take years, and the government can deny the application. Activists did not identify any obstacles standing in the way of naturalization for men who fulfilled this residency requirement.

Syrian refugees were sometimes unable to obtain birth certificates for children born in the country if they could not present an official marriage certificate or other nationality documents, which were sometimes lost or destroyed when they fled, or confiscated by government authorities when the refugees entered the country. Refugee households headed by women faced difficulty in certifying nationality of offspring in absence of the father, which increased the risk of statelessness among this population. Civil registry departments and sharia courts in the Za'atri and Azraq camps helped refugees register births.

Section 3. Freedom to Participate in the Political Process

The law does not provide citizens the ability to choose their executive branch of government. The king appoints and dismisses the prime minister, cabinet, and upper house of parliament; dissolves parliament; and directs major public policy initiatives. Citizens have the ability to choose the lower house of parliament in generally credible periodic elections based on universal and equal suffrage and conducted by secret ballot. Citizens also elect most of the 308 mayors, most

members of governorate councils, and all members of municipal councils. While the voting process is well run, official obstacles to political party activity and campaigning limited participation. International organizations continued to have concerns about the gerrymandering of electoral districts. The cabinet, based on the prime minister's recommendations, appoints the mayors of Amman, Wadi Musa (Petra), and Aqaba, a special economic zone. Elections for the lower house of parliament took place in 2016. Elections for mayors, governorate councils, and municipal councils took place on August 15.

Elections and Political Participation

Recent Elections: The government held parliamentary elections in September 2016. The Independent Election Commission (IEC) administered the polls. The commission is an autonomous legal entity. It supervises and administers all phases of parliamentary elections, regional and municipal elections, as well as other elections called by the Council of Ministers. Local and foreign monitors noted the election was generally free and fair and technically well administered.

The election exhibited important technical advances in administration, but observers cited allegations of vote buying, ballot box tampering in one region, and other abuses. International and domestic observers of the election process expressed reservations about inadequacies in the electoral legal framework and stressed the need to allocate seats to districts proportionally based on population size.

Several Islamist parties participated in the September 2016 parliamentary election, ending a six-year boycott. The Islamic Action Front won 15 seats, including 10 for party members.

The August 15 vote marked the first time the IEC administered municipal elections, since the Ministry of Interior ran them until a 2014 constitutional amendment granted the IEC more authority. In addition to the election of mayors and local councils, the poll resulted in the election of new governorate-level councils. Many monitors praised the elections as technically well run, but a nongovernment elections monitoring body, Rased, registered more than 500 illegal incidents.

The elections took place under a new decentralization law passed by parliament and ratified by the king on March 13. The law established two councils to participate in the budgeting process at the governorate level: a governorate

council, which is 85 percent elected and 15 percent appointed, and an executive council, which is fully appointed. The appointed council is composed of technical experts from the central government.

Political Parties and Political Participation: The Political Parties Law places supervisory authority of political parties in the Ministry of Political and Parliamentary Affairs. Political parties must have 150 founding members, all of whom must be citizens habitually resident in the country and not be members of non-Jordanian political organizations, judges, or affiliated with the security services. There is no quota for women when founding a new political party. Parties may not be formed on the basis of religion, sect, race, gender, or origin (meaning that they may not make membership dependent on any of these factors). The law stipulates citizens may not be prosecuted for their political party affiliation. Most politicians believed, however, that the GID would harass them if they attempted to form or join a real political party. The Committee on Political Party Affairs oversees the activities of political parties. The Secretary General of the Ministry of Political and Parliamentary Affairs chairs the committee, which includes a representative from the Ministry of Interior, the Ministry of Justice, the Ministry of Culture, the NCHR, and civil society. The law grants the committee the authority to approve or reject applications to establish or dissolve parties. It allows party founders to appeal a rejection to the judiciary within 60 days of the decision. According to the law, approved parties can only be dissolved subject to the party's own bylaws; or by a judicial decision for affiliation with a foreign entity, accepting funding from a foreign entity, violating provisions of the law, or violating provisions of the constitution. The law prohibits membership in unlicensed political parties. There were 49 registered political parties, but they were weak, generally had vague platforms, and were personality centered. The strongest and most organized political party was the Islamic Action Front.

Participation of Women and Minorities: No laws limit participation of women and/or minorities in the political process, and they did participate. The electoral law limits parliamentary representation of certain minorities to designated quota seats. Human rights activists, however, cited cultural bias against women as an impediment to women participating in political life on the same scale as men. There are quotas for women in the lower house of parliament, governorate councils, municipal councils, and local councils. During the year's elections for the governorate councils, four women won in free competition and 32 women won through the quota system, and the government appointed 17 additional women as required by law. At the municipal council level, women won 28 seats in free competition and 57 by quota. At the local council (neighborhood) level, women

won 231 seats in free competition and 324 through the quota system. In 51 local council races, women were the top vote getters, meaning they would also be members of their area's municipal council. No women won mayorships.

In the 2016 parliamentary elections, voters elected 20 women to the lower house, five of whom won by outright competition outside the quota. The king appointed 10 women to the upper house. The last government reshuffle took place on June 14. The 29-member cabinet included three female ministers: the minister of information and communications technology and public sector development, the minister of tourism and antiquities, and the minister of social development.

Citizens of Palestinian origin were underrepresented at all levels of government and the military. The law reserves nine seats in the lower house of parliament for Christians and three seats for the Circassian and Chechen ethnic minorities combined, constituting an overrepresentation of these minorities. In the parliamentary elections nine Christians won seats. The law stipulates that Muslims must hold all parliamentary seats not specifically reserved for Christians or on the national list. Five Christians were in the upper house of parliament. There are no reserved seats for the relatively small Druze population, but its members may hold office under their government classification as Muslims. Christians served as cabinet ministers and ambassadors. There were four Christian ministers in the cabinet.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption, although the government did not implement the law effectively. Some officials reportedly engaged in corrupt practices with impunity. During the year there were some investigations into allegations of corruption but very few convictions. The use of family, business, and other personal connections to advance personal business interests was widespread. There were allegations of lack of transparency in government procurement, government appointments, and dispute settlement.

In September the Ministry of Justice escalated pursuit of the fugitive former director of the Jordanian Phosphate Company, Walid al-Kurdi, convicted in absentia of corruption in 2013. The government requested Interpol assistance to arrest Kurdi. Local media reported that, despite the standing conviction, Kurdi entered and exited the country multiple times to attend social events but resided in London.

The Integrity and Anticorruption Commission (IACC) continued to work on the National Anticorruption Strategy (2013-17), evaluating the legislative regulatory and institutional anticorruption framework in the country. In February the new IACC head announced an initiative to refocus on preventing corruption in lieu of investigation and prosecution.

Corruption: The IACC is the main body responsible for combating corruption, although the Antimoney Laundering Unit is responsible for combating money laundering. Despite increased investigations, some local observers questioned the commission's effectiveness due to its limited jurisdiction, insufficient staff, legal obstacles, and the small number of investigations involving senior officials or large government projects. There were credible allegations that the commission failed to investigate cases involving high-level government officials.

The IACC received 650 new complaints about corruption in the first half of the year. In response, it opened investigations into 108 cases, referred two cases for prosecution, and referred 166 for administrative action; 289 remain pending. The IACC prosecutors filed charges in 55 corruption cases in the first half of the year.

The Ombudsman Bureau receives and investigates public complaints about corruption and misconduct by public officials.

During the year a former head of the public tenders department of the Ministry of Public Works and Housing testified to parliament that the minister tried to fire her in 2016 for refusing to approve questionable tenders. She accused the minister of pressing her to approve tenders for certain companies with which he had ties, despite the fact these companies had not followed proper procedures. When the minister was not able to fire her, he renewed her contract for one year, then allegedly forced her into retirement.

In April the IACC launched a hotline for receiving investment complaints.

Financial Disclosure: The law requires certain government officials, their spouses, and dependent children to declare their assets privately within three months of their assuming a government position. Officials rarely publicly declared their assets. Authorities blocked efforts by transparency activists to identify officials publicly who did not declare their assets. In the event of a complaint, the chief justice may review the disclosures. Under the law failure to disclose assets could result in a prison sentence of one week to three years or a fine of five to 200 JD (\$7-\$280). No officials were punished for failing to submit a disclosure.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Abuses of Human Rights

A number of domestic and international human rights groups operated in the country with some restrictions. The law gives the government the ability to control NGOs' internal affairs, including acceptance of foreign funding. NGOs generally were able to investigate and report publicly on human rights abuses, although government officials were not always cooperative or responsive. In at least one case, security services subjected a human rights activist to intimidation and reprisals by the employer.

Government Human Rights Bodies: The NCHR received both government and international funding. The prime minister nominates its board of trustees, and the king ratifies their appointment by royal decree. The government appoints NCHR's commissioner general. The NCHR compiles an annual report assessing compliance with human rights that sometimes criticizes government practices. The NCHR submits the report to the upper and lower houses of parliament, and to the council of ministers. NCHR recommendations are not legally binding.

The prime minister established a permanent governmental committee headed by the Government Coordinator for Human Rights to review NCHR recommendations and to measure progress towards international human rights standards. In March 2016 the committee launched a 10-year comprehensive national human rights action plan designed to reform laws in accordance with international standards and best practices. Ministries formed working groups for implementation and published the plan on their websites.

To implement the action plan, the Government Coordinator for Human Rights formed a team of liaison officers from government, NGOs, security agencies, and other formal institutions to improve collaboration and communication. The Government Coordinator for Human Rights published a periodic report assessing the government's progress on human rights on June 13 and another report on September 6. The Government Coordinator for Human Rights arranged prison visits for civil society organizations and diplomatic missions as well as meetings among government ministers, officials, NGOs, and civil society organizations.

In June the government coordinator hosted a roundtable discussion gathering 170 government and civil society representatives to exchange views on amendments to the penal code, particularly the article that exonerates rapists who marry their

victims. Based on the discussions, the government coordinator recommended abolishing the article, and parliament voted to adopt the recommendation on August 1.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Women

Rape and Domestic Violence: The law stipulates a sentence of at least 10 years of imprisonment with hard labor for the rape of a girl or woman 15 years of age or older. Spousal rape is not illegal. Parliament passed a revised domestic violence law in April that clarified procedures for reporting and case management and specified that these complaints must receive expedited processing. The law made prosecution mandatory for felony offenses. Nonfelony offenses are first subject to mediation by the Family Protection Department of the PSD. The new law provides options for alternative sentencing in domestic violence cases with consent of the victim. NGOs noted that the new law now clarifies procedures for handling domestic violence, but the definition of domestic violence remains unclear.

In August parliament abolished an article of the penal code that exonerated rapists who married their victims.

The government did not effectively enforce the law against rape, and violence against women was widespread.

Women may file complaints of rape or physical abuse with certain NGOs or directly with judicial authorities. As of September 30, the Family Protection Department treated and investigated 1,050 cases of rape or sexual assault against women. The FPD actively investigated cases, but gave preference to mediation, and some activists reported pressure against taking physical abuse cases to court. Spousal abuse is technically grounds for divorce, but husbands claimed religious authority to strike their wives. Observers noted while judges generally supported a woman's claim of abuse in court, due to societal and familial pressure, as well as fears of violence such as honor killings, few women sought legal remedies.

The Family Protection Department continued to operate a domestic violence hotline and received inquiries and complaints via the internet and email. According to the Ministry of Social Development, the government maintained a second shelter for female victims of domestic violence in Irbid.

The government-run center for trafficking victims in Amman, Dar al-Karamah, assisted victims of trafficking.

Other Harmful Traditional Practices: Of the 42 women killed in the country through August, local media identified eight as “honor crimes.” Activists stated, however, many such crimes went unreported.

In March the Court of Cassation toughened the sentences against two men convicted of killing their sister in an honor crime to 15 and 20 years imprisonment. In August parliament amended the penal code to eliminate the “fit of fury” as a mitigating factor in sentencing for honor crimes, except in cases of adultery caught in the act. Parliament also amended the law to eliminate mitigated sentencing for honor crimes cases when the family would ordinarily drop charges.

There were no reported instances of forced marriage as an alternative to a potential honor killing during the year, although NGOs noted that many cases of forced marriage occurred shortly after an accusation of rape due to family and societal pressure before any formal trial began. Observers noted that if a woman marries her rapist, according to customary belief, her family members do not need to kill her to “preserve the family’s honor.”

Through their administrative detention authority, governors continued to place potential victims of honor crimes in involuntary protective custody in the Women’s Correctional and Rehabilitation Center in the Jweideh and the Umm al-Lulu detention facilities, where some women remained for more than one year.

Sexual Harassment: The law strictly prohibits sexual harassment and does not distinguish between sexual assault and sexual harassment. Both carry a minimum prison sentence of four years at hard labor. Parliament amended laws to set penalties for indecent touching and verbal harassment, but did not define or substantively strengthen protections against sexual harassment. The government did not enforce this law. NGOs reported refugees from Syria and foreign migrant workers, including garment workers and domestic workers, were especially vulnerable to gender-based violence, including sexual harassment and sexual assault, in the workplace.

Coercion in Population Control: There were no reports of coerced abortion, involuntary sterilization, or other coercive population control methods. Estimates on maternal mortality and contraceptive prevalence are available at:

www.who.int/reproductivehealth/publications/monitoring/maternal-mortality-2015/en/.

Discrimination: The law does not provide for the same legal status and rights for women as for men. Women experienced discrimination in a number of areas, including inheritance, divorce, child custody, citizenship, the workplace, and, in certain circumstances, the value of their testimony in a sharia court.

No specialized government office or designated official handles discrimination claims. The Jordanian National Commission for Women, a government-supported NGO, operated a hotline to receive discrimination complaints.

Under sharia as applied in the country, daughters inherit half the amount that sons receive. A sole female heir receives only half of her parents' estate, with the balance going to uncles, whereas a sole male heir inherits all of his parents' property. Women may seek divorce without the consent of their husbands in limited circumstances such as abandonment, spousal abuse, or in return for waiving financial rights. The law allows retention of financial rights under specific circumstances, such as spousal abuse. Special courts for each Christian denomination adjudicate marriage and divorce, but for inheritance sharia rules apply by default.

The law allows fathers to prevent their children under the age of 18 from leaving the country through a court order that is not available to mothers. Authorities did not stop fathers from exiting the country with their children when the mother objected.

The government provided men with more generous social security benefits than women. The government continued pension payments of deceased male civil servants to their heirs, but it discontinued payments to heirs of deceased female civil servants unless they were the sole income earner in the family. Laws and regulations governing health insurance for civil servants under the Civil Service Bureau do not permit married women to extend their health insurance coverage to dependents or spouses unless they are the sole income earner in the family, whereas men can automatically extend full insurance benefits to spouses and dependents. Divorced and widowed women may extend coverage to their children (see section 2.d., Stateless Persons, and section 7.d.).

In August parliament amended the penal code to grant mothers permission to give consent for surgeries on their minor children without consent of their father.

Children

Birth Registration: Only the father transmits citizenship. The government did not issue birth certificates to all children born in the country during the year. The government deemed some children--including children of unmarried women, orphans, or certain interfaith marriages involving a Muslim woman and converts from Islam to another religion--illegitimate and denied them standard registration. Instead, the government issued these children unique national identification numbers, making it difficult or impossible for them to attend school, access health services, or receive other documentation. Authorities removed children born out of wedlock from their mothers and placed them in orphanages, regardless of the mother's desire for custody.

Education: Education is compulsory from ages six through 16 and free until age 18. No legislation exists to enforce the law or to punish guardians for violating it. Children without legal residency do not have the right to attend public school. Some children of female citizens and noncitizen fathers must apply for residency permits every year, and authorities did not assure permission (see section 2.d., Stateless Persons). The Ministry of Education allowed Syrians to enroll at local public schools, with the exception of students who were out of school for three or more years. In some cases authorities did not permit refugee children to register in school due to lack of documentation. A trust fund supported by international donors helped cover the cost and provided a supplement to teachers who worked in schools in the Za'atri and Azraq camps and in the host communities. The government doubled the number of double-shift schools to allow additional Syrian refugee students access to formal education.

Children with disabilities experienced extreme difficulty in accessing constitutionally protected early and primary education.

Child Abuse: No specific law provides protection for children, but other laws specify punishment for child abuse. For example, conviction for rape of a child younger than age 15 potentially carries the death penalty. Local organizations working with abused children pointed to gaps in the legal system that regularly resulted in lenient sentencing, particularly for family members. In child abuse cases, judges routinely showed leniency in accordance with the wishes of the family. In some cases authorities failed to intervene when confronted with reports of abuse, resulting in escalating violence and ultimately death.

In July the rape and killing of a seven-year-old Syrian child generated public anger. The authorities quickly arrested a suspect who confessed to the crimes, and protestors called for the death penalty. In October the Criminal Court convicted the perpetrator of sexual assault and murder and sentenced him to death.

The Juvenile Law places the age of criminal responsibility at 12 years. The law stipulates that juveniles charged with committing a crime along with an adult be tried in a juvenile court. Although the law gives the State Security Court jurisdiction over all drug and terrorism related charges, including juveniles, the State Security Court issued a judgment that it does not have jurisdiction over juveniles. Terrorism-related trials of juveniles took place during the year in front of the juvenile criminal court. The law stipulates alternative penalties for juvenile offenders, including vocational training and community service.

Early and Forced Marriage: The minimum age for marriage is 18. With the consent of both a judge and a guardian, a child as young as 15 years old may be married. During the year the Supreme Judge Department issued new marriage regulations, including a 15-year maximum age difference between the husband and the wife, provided that the would-be husband is not married and that marriage would not prevent the girl from pursuing her education. Judges have the authority to decide if marriage of girls between 15 and 18 years old would be “in their best interest” and to adjudicate the marriage contract.

Sexual Exploitation of Children: The law stipulates a penalty for the commercial exploitation of children of six months’ to three years’ imprisonment. The law prohibits the distribution of pornography involving persons under the age of 18. The law does not specifically prohibit the possession of child pornography without an intention to sell or distribute. The law penalizes those who use the internet to post or distribute child pornography. The minimum age of consensual sex is 18, although sexual relations between minors whose marriages the courts approved are legal.

Institutionalized Children: NGOs reported physical and sexual abuses occurred in government institutions. According to the NCHR, some juveniles in detention alleged mistreatment. Authorities automatically referred cases involving violence against persons with disabilities or institutionalized persons to the Family Protection Department. The community monitoring committee highlighted the pervasive use of physical discipline; physical and verbal abuse; unacceptable living conditions; and a lack of educational, rehabilitative, or psychosocial services for wards and inmates.

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. See the Department of State's *Annual Report on International Parent Child Abduction* at travel.state.gov/content/childabduction/en/legal/compliance.html.

Anti-Semitism

Aside from foreigners, there was no resident Jewish community in the country. Anti-Semitism was present in media. Editorial cartoons, articles, and opinion pieces sometimes negatively depicted Jews without government response. The national school curriculum, including materials on tolerance education, did not mention the Holocaust, but it was taught in some private school curriculums.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law generally provides equal rights to persons with disabilities, but authorities did not uphold such legal protections. Disabilities covered under the law include physical, sensory, psychological, and mental disabilities. The Higher Council for Affairs of Persons with Disabilities, a government body, worked with ministries, the private sector, and NGOs to formulate and implement strategies to assist persons with disabilities. Citizens and NGOs universally reported that persons with disabilities faced problems in obtaining employment and accessing education, health care, transportation, and other services, particularly in rural areas.

In June parliament amended the law on the rights of persons with disabilities, strengthening protections for workers with disabilities, and criminalizing neglect of persons with disabilities. The law requires private companies to hire workers with disabilities, forbids employers from firing employees solely because of their disability, and directs employers to make their workplaces accessible to persons with disabilities.

Activists noted the law lacked implementing regulations, and authorities rarely enforced it. Authorities exempted from the quota employers who stated the nature of the work was not suitable for persons with disabilities.

The electoral law directs the government to verify that voting facilities are accessible to persons with disabilities and allows such persons to bring a personal assistant to the polling station; the Independent Electoral Commission has responsibility for implementing this law.

The law tasks the Special Buildings Code Department with enforcing accessibility provisions and oversees retrofitting of existing buildings to comply with building codes. The vast majority of private and public office buildings continued to have limited or no access for persons with disabilities. Municipal infrastructure such as public transport, streets, sidewalks, and intersections was not accessible.

An NCHR report noted that school classrooms were not fully accessible, and there were no qualified teachers for children with disabilities. Families of children with disabilities reported that teachers and principals often refused to include children with disabilities in mainstream classrooms.

Human rights activists and media reported on cases of physical and sexual abuse of children and adults with disabilities in institutions, rehabilitation centers, and other care settings. The government operated some of these institutions, and some of the abusers were government employees.

National/Racial/Ethnic Minorities

Four groups of Palestinians resided in the country, many of whom faced some discrimination. Those who migrated to the country and the Jordan-controlled West Bank after the 1948 Arab-Israeli war received full citizenship, as did those who migrated to the country after the 1967 war and held no residency entitlement in the West Bank. Those still holding residency in the West Bank after 1967 were no longer eligible to claim full citizenship, but they could obtain temporary travel documents without national identification numbers, provided they did not also carry a Palestinian Authority travel document. These individuals had access to some government services but paid noncitizen rates at hospitals, educational institutions, and training centers. Refugees who fled Gaza after 1967 were not entitled to citizenship, and authorities issued them temporary travel documents without national numbers. These persons had no access to government services and were almost completely dependent on UNRWA services. PRS who were able to enter the country, despite many being turned away at the border, had access to UNRWA services.

Palestinians were underrepresented in parliament and senior positions in the government and the military, as well as in admissions to public universities. They had limited access to university scholarships. They are well represented in the private sector.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

Authorities can arrest LGBTI individuals for allegedly violating public order or public decency, which are crimes under the penal code. Arrests, however, were rare during the year. While consensual same-sex sexual conduct is not illegal, societal discrimination against LGBTI persons was prevalent, and LGBTI persons were targets of violence and abuse. Activists reported discrimination against LGBTI persons in housing, employment, education, and access to public services. Some LGBTI individuals reported reluctance to engage the legal system due to fear their sexual orientation or gender identity would either provoke hostile reactions from police, disadvantage them in court, or be used to shame them or their families publicly. Activists reported that most LGBTI individuals were closeted and feared disclosure of their sexual identity.

During the year there were reports of individuals who left the country due to fear that their families would kill them because of their sexual orientation.

HIV and AIDS Social Stigma

HIV/AIDS was a largely taboo subject. Lack of public awareness remained a problem, because many citizens believed the disease exclusively affected foreigners and members of the LGBTI community. Society stigmatized HIV/AIDS-positive individuals, and they largely hid their medical status. The government continued its efforts to inform the public about the disease and eliminate negative attitudes about persons with HIV/AIDS, but it also continued to test all foreigners annually for HIV/AIDS, hepatitis B, syphilis, malaria, and tuberculosis. The government deported individuals who tested HIV-positive.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law, including related regulations and statutes, provides for the right to form and join free trade unions and conduct legal strikes, but with significant

restrictions. There is no right to collective bargaining, although the labor code provides for collective agreements. The law identifies specific groups of public- and private-sector workers who may organize and defines 17 industries and professions in which trade unions may be established. The establishment of new unions requires approval from the Ministry of Labor and at least 50 founding members. The law requires that these 17 trade unions belong to the government-linked General Federation of Jordanian Trade Unions, the country's sole trade union federation. The law authorizes additional professions on a case-by-case basis to form professional associations. Authorities did not permit civil servants to form or join unions, and they cannot engage in collective bargaining. The constitution prohibits antiunion discrimination, and the law protects workers from employer retaliation due to union affiliation or activities. The law does not explicitly provide a worker fired due to antiunion views with the right to reinstatement.

The law allows foreign workers to join unions, but it does not permit them to create unions, head a union, or hold union office. It remained unclear whether the law permits domestic and agricultural workers to create or join unions or whether the labor code grants them other protections. Labor court judges were divided over whether the entire labor code applied to domestic workers or whether only a specific regulation for domestic workers, cooks, gardeners, and similar workers applied.

Regulations refer conflicts during negotiations first to a mediator appointed by the Ministry of Labor. If the case is unresolved, it moves to the minister of labor and then to a mediation council composed of an employer representative, a labor representative, and a chair appointed by the minister of labor. The minister refers conflicts not settled by the council to a labor court with a panel of ministry-appointed judges. There are limits on the right to strike, including a requirement to provide a minimum of 14 days' notice to the employer. The law prohibits strikes if a labor dispute is under mediation or arbitration.

The government did not fully respect freedom of association and the right to collective bargaining. Many worker organizations were not independent of the government, and government influence on union policies and activities continued.

The government subsidized and audited salaries and activities of the General Federation of Jordanian Trade Unions and monitored union elections. The government denied recognition to independent unions organized outside the structure of the government-approved federation. The government did not meet

with these unions, and the lack of legal recognition often hampered their ability to collect dues, obtain meeting space, and otherwise address members' workplace concerns. Labor organizations also reported trouble getting government recognition for trade unions in new sectors beyond the 17 established in law.

There were no reports of threats of violence against union heads, although labor activists alleged that the security services pressured union leaders to refrain from activism that challenged government interests. Strikes generally occurred without advance notice or registration.

Labor organizations reported that management representatives used threats to intimidate striking workers.

Foreign workers in the garment, construction, services, and agricultural sectors, whose residency permits are tied to work contracts, were vulnerable to retaliation by employers for participating in strikes and sit-ins. Participation in a legally unrecognized strike counted as an unexcused absence for the purpose of this law. The law allows employers to consider employment contracts void if a worker is absent more than 10 consecutive days, as long as the employer provides written notice. The Ministry of Labor sometimes prevented management from arbitrarily dismissing foreign workers engaged in labor or other activism, but its enforcement was inconsistent. Observers reported management's common practice of refusing to renew foreign workers' contracts due to "troublemaking" or attempting to organize in the workplace.

Observers noted that the labor code did not explicitly protect nonunionized workers from retaliation. This was particularly the case for foreign workers in all sectors as well as citizens working in the public sector on short-term contracts (day laborers).

Labor NGOs working to promote the rights of workers generally focused on promoting the rights of migrant workers. Labor NGOs did not face additional or different government restrictions than those discussed in section 2.b.

b. Prohibition of Forced or Compulsory Labor

The law prohibits all forms of forced or compulsory labor except in a state of emergency, such as war or natural disaster. The government made substantial efforts to enforce the law through inspections and other means. Labor activists

noted that law enforcement and judicial officials did not consistently identify victims or open criminal investigations.

As of June police investigated 148 cases and referred nine potential victims to the prosecutor general as trafficking cases. The Joint Antitrafficking Unit of the Public Security Directorate investigated 122 cases of nonpayment of wages, withholding of passports, breaches of contracts, inappropriate work conditions, and prolonged hours without overtime pay. Police referred 122 potential victims of forced labor to shelter services. During the year human rights NGOs reported four cases prosecuted under the trafficking in persons law.

In the garment sector, the government inspected factories and investigated allegations of forced labor. Forced labor or conditions indicative of forced labor occurred, particularly among migrant workers in the domestic work and agricultural sectors. Activists highlighted the vulnerability of agricultural workers due to minimal government oversight. Activists also identified domestic workers as particularly vulnerable to exploitation due to inadequate government oversight, social norms that excused forced labor, and workers' isolation within individual homes. Labor inspectors did not regularly investigate reports of labor or other abuses of domestic workers in private homes, and inspectors could not enter a private residence without the owner's permission except with a court order. NGOs reported the Joint Antitrafficking Unit preferred to settle potential cases of domestic servitude through mediation, rather than referring them for criminal prosecution. As of June the Ministry of Labor resolved 452 of 512 complaints received from domestic workers.

In October 2016 the Department of Labor of a foreign government determined that the incidence of forced labor in the production of garments in the country had been significantly reduced, and evidence available supported the removal of this product from that government's Trafficking Victims Protection Reauthorization Act List.

The government continued its cooperation with foreign embassies to waive overstay fees for migrant domestic workers who wish to repatriate after a two-year stay in the country. The government also has a liaison officer permanently based at the international airport to facilitate voluntary repatriation of trafficking victims.

Government bylaws require recruitment agencies for migrant domestic workers to provide health insurance, workplace accident insurance, and insurance that reimburses the recruitment fees to employers when a worker leaves before fulfilling the contract. If the employer fails to pay the worker's salary or to return

the worker's passport, then the employer would not be entitled to the insurance payment. The bylaws authorize the Ministry of Labor publicly to classify recruitment agencies based on compliance and to close and withdraw the license of poorly ranked agencies. The ministry issued closure recommendations for five recruitment agencies, issued warnings to 18 agencies, and withdrew the licenses of 20 agencies as of June. According to an official at the Ministry of Labor, a closure recommendation is an internal procedure in which inspectors send their recommendation to close certain recruitment offices with many labor violations to the minister of labor. Based on that recommendation, the minister may issue a closure decision. If the minister decides to close an office, the initial closure lasts for one year or until the office owner corrects the violations. If the office does not correct all violations within the one-year grace period, the Ministry of Labor withdraws its license, permanently closing the office.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law forbids employment of children younger than 16 years of age, except as apprentices in nonhazardous positions. The law bans those between the ages of 16 and 18 from working in potentially hazardous jobs, limits working hours for such children to six hours per day, mandates one-hour breaks for every four consecutive working hours, and prohibits work after 8 p.m., on national or religious holidays, and on weekends.

There were instances of child labor, and many local and international organizations reported it was on the rise, particularly among the Syrian refugee community. Approximately 1.9 percent of the four million children of all nationalities residing in the country were employed.

The labor ministry's Child Labor Unit was responsible for coordinating government action regarding child labor in collaboration with the National Framework to Combat Child Labor Steering Committee and, with the department's labor inspectors, was responsible for enforcing all aspects of the labor code, including child labor. Authorities referred violators to an administrative labor court; the Ministry of Justice had no information on any child labor cases referred to criminal courts. The law provides that employers who hired a child younger than age 16 pay a fine of as much as 500 JD (\$700), which doubles for repeat offenses.

Labor inspectors reportedly attempted alternative approaches before issuing official warnings and violations, such as issuing advice and guidance, ensuring safe work conditions, and cooperating with employers to permit working children to attend school concurrently.

The government's capacity to implement and enforce child labor laws was not sufficient to deter violations. The government lacked capacity to monitor children working in the informal work sector, such as children working in family businesses and the agricultural sector.

The Ministries of Labor, Education, and Social Development collaborated with NGOs aiming to withdraw children from the worst forms of labor.

Syrian refugee children worked in the informal sector without legal work permits. They sold goods in the streets in many parts of the country and begged in urban areas.

Also see the Department of Labor's *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/reports/child-labor/findings/.

d. Discrimination with Respect to Employment and Occupation

Labor laws do not prohibit discrimination with respect to employment and occupation on the basis of race, sex, gender, disability, language, political opinion, national origin or citizenship, age, sexual orientation and/or gender identity, HIV-positive status or other communicable diseases, or social status.

Discrimination in employment and occupation occurred with respect to gender, disability, national origin, and sexual orientation (see section 6).

Union officials reported that sectors employing predominantly women, such as secretarial work, offered wages below the official minimum wage. Many women also reported traditional social pressures discouraged some from pursuing professional careers, especially after marriage. According to the Department of Statistics' first quarter survey on unemployment, unemployment among women holding a bachelor's degree was 53.9 percent.

Persons with disabilities faced discrimination in employment and access to the workplace. Migrant workers, faced discrimination in wages, housing, and working conditions (see section 7.e.).

e. Acceptable Conditions of Work

In February the government increased the national minimum wage, which remained below the poverty level per month for a family of five. According to a 2010 World Bank study, 14.4 percent of Jordanians were living below the poverty line at some point throughout the year. The government's minimum wage increase excluded noncitizens and all workers in the garment industry. The General Trade Union of Workers in Textile, Garment, and Clothing Industries; the Jordan Garments, Accessories, and Textile Exporters Association; and the General Union for Garment Factories Owners negotiated a new collective bargaining agreement in the garment sector.

The law sets a standard workweek of 48 hours and requires overtime pay for hours worked in excess of that standard. The law provides for 14 days of paid sick leave and 14 days of paid annual leave per year, which increases to 21 days after five years of service with the same firm. Workers also received additional national and religious holidays designated by the government. Employees are entitled to one day off per week. The law permits compulsory overtime under certain circumstances such as conducting an annual inventory, closing accounts, preparing to sell goods at discounted prices, avoiding loss of goods that would otherwise be exposed to damage, and receiving special deliveries. In such cases actual working hours may not exceed 10 hours per day, the employee must be paid overtime, and the period may not last more than 30 days. There is no cap on the amount of consensual overtime.

The government set occupational health and safety standards. Employers are required to abide by all such standards set by the Ministry of Labor. The law requires employers to protect workers from hazards caused by the nature of the job or its tools, provide any necessary protective equipment, train workers on hazards and prevention measures, provide first aid as necessitated by the job, and protect employees from explosions or fires by storing flammable materials appropriately.

The Ministry of Labor is responsible for enforcement of labor laws and acceptable conditions of work. Ministry inspectors enforced the labor code but were unable to assure full compliance. Employees may lodge complaints regarding violations of the labor code directly with the Ministry of Labor or through organizations such as

their union or the NCHR. The ministry opened an investigation for each complaint.

Labor standards apply to the informal sector, but the labor ministry lacked the capacity to detect and monitor workplace violations. Authorities did not consistently apply all the protections of the labor code to domestic and agricultural workers, because their applicability was not clear. Labor organizations stated that agricultural and domestic workers, cooks, and gardeners were not entitled to social benefits from the Social Security Corporation.

The government took action to prevent violations and improve working conditions. The labor ministry placed a special focus on enforcing compliance in the Qualifying Industrial Zones, which largely employed migrant garment workers. The ratio of labor inspectors to workers or places of employment was significantly higher in these zones than for the general population. In October 2016 the Ministries of Health and Labor signed an agreement entrusting the Ministry of Labor with inspecting housing units where migrant workers resided and punishing employers that failed to comply with international and national accommodation policies. The government required garment export manufacturers to participate in the Better Work Jordan program to improve labor standards. During the year all 77 factories required by the government to join Better Work Jordan were active members of the program.

Wage, overtime, safety, and other standards often were not upheld in several sectors, including construction, mechanic shops, day labor, and the garment industry. Some foreign workers faced hazardous and exploitative working conditions in a variety of sectors. Authorities did not effectively protect employees who attempted to remove themselves from situations that endangered their health and safety. Labor organizations reported that female citizen workers were more likely to encounter labor violations, including wages below the minimum wage and harassment in the workplace. According to labor ministry statistics, the gender gap in wages in the private sector was 41 percent, and 28 percent in the public sector.

Because there was no limit on consensual overtime, the labor ministry permitted employees in some industries, such as the garment sector, to work excessive workweeks, reportedly as many as 80 to 100 hours per week.

In the garment sector, foreign workers were more susceptible than their citizen counterparts to dangerous or unfair conditions. As of June the labor ministry closed 418 workplaces for recruiting foreign workers without work permits. Better

Work Jordan stated compliance regarding coercion improved. Indebtedness of migrant garment workers to third parties and involuntary or excessive overtime persisted.

On February 16, the Ministry of Labor ordered the closure of the Top Tex garment factory following an NGO report of unresolved labor violations including unattainable production targets, verbal abuse, and inadequate living conditions for workers.

Employers subjected some workers in the agricultural sector, the vast majority of whom were Egyptians, to exploitative conditions. According to a domestic NGO, agricultural workers usually received less than the minimum wage. Some employers in the agricultural sector also reportedly confiscated passports. Egyptian migrant workers were also vulnerable to exploitation in the construction industry; employers usually paid them less than the minimum wage, and they lacked basic training and equipment necessary to uphold occupational health and safety standards.

Domestic workers, overwhelmingly migrants, often faced unacceptable working conditions. While domestic workers could file complaints in person with the labor ministry's Domestic Workers Directorate or the PSD, many domestic workers complained there was no follow-up on their cases. Callers to a domestic-worker hotline of the labor ministry reported that live operators were available only during government business hours, or seven hours a day during the workweek. After-hours calls required the caller to leave a message and a callback number, which posed particular difficulties for domestic workers who had access only to their employers' telephones. Advocates for migrant workers reported that hotline instructions in Arabic were difficult for noncitizens to understand and that some key languages were still missing from the hotline translation service.

In 2015 the prosecutor general charged a Jordanian woman in Irbid with premeditated murder after she allegedly beat an Indonesian domestic worker in her employ to death. The forensic report showed that the worker died due to brain hemorrhage. The case was pending at year's end.

Advocates for migrant domestic workers reported that domestic workers who sought government assistance or made allegations against their employers frequently faced counterclaims of criminal behavior from their employers. Employers could file criminal complaints or flight notifications against domestic workers with police stations. Even when domestic workers benefited from

initiatives such as the general amnesty that waived immigration overstay fines, such alerts on file with police could prevent them from leaving the country.

During the year dozens of domestic workers from the Philippines, Indonesia, and Sri Lanka sought shelter at their countries' embassies in Amman. Through June the government-run shelter for victims of trafficking assisted 120 victims of trafficking, including workers from Bangladesh and the Philippines. Most of the domestic workers reportedly fled conditions indicative of forced labor or abuse, including unpaid wages and, to a lesser extent, sexual or physical abuse. By law employers are responsible for renewing foreign employees' residency and work permits but often failed to do so for domestic employees. As a result authorities considered most of the domestic workers sheltered by embassies illegal residents, and many were stranded because they were unable to pay accumulating daily overstay fees to depart the country. The government continued its cooperation with foreign embassies to waive overstay fees for migrant domestic workers who wished to repatriate after a two-year stay in the country, a policy that greatly reduced the number of domestic workers stranded at their embassies' shelters.

As a result of poor working conditions experienced by some of its citizens, Indonesia prohibited its citizens from traveling to Jordan as domestic workers. Some human rights organizations argued that these bans heightened the vulnerability of foreign domestic workers who turned to unscrupulous recruitment agencies to migrate illegally to the country.